

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
GREGORY WHITE ,

Plaintiff(s),

-against-

Date Purchased:
Index No.
Plaintiff designates
NEW YORK COUNTY
as the place of trial
The basis of venue is place of
Occurrence
CPLR 504

S U M M O N S

CITY OF NEW YORK; Police Officer MICHAEL
GUGLIELMI, Shield 16393; NYPD Police Officers;
Sergeants; Detectives John Doe 1-10; NYPD Captain
John Doe and Mary Roe ,

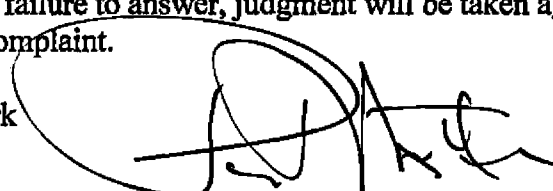
Defendants.

Plaintiff resides in
Bronx County, New York

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to answer to the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance, on the Plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service (or within thirty (30) days after service is complete if service is made by any method other than personal delivery to you within the State of New York). In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 7, 2020



LAYTON LAW FIRM, PLLC
PAUL THOMAS LAYTON
Attorney for Plaintiffs
30 Vesey Street (Suite 1801)
New York, New York 10007
Tel: (917) 923-4287

Defendant's Address

One Centre Street
Municipal Building
New York, NY 10007
CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer Michael Guglielmi, Shield 16393
NYPD 007th Precinct
19 ½ Pitt Street
New York, New York 10002

NYPD Police Officers; Sergeants; Detectives
John Doe 1-10
Address unknown

NYPD Captain John Doe and Mary Roe
Address Unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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GREGORY WHITE,

Plaintiff,

-v-

CITY OF NEW YORK; Police Officer MICHAEL
GUGLIELMI, Shield 16393; NYPD Police Officers;
Sergeants; Detectives John Doe 1-10; NYPD Captain
John Doe and Mary Roe,

Defendants.
-----X

**VERIFIED
COMPLAINT AND
DEMAND FOR JURY
TRIAL**

Plaintiff GREGORY WHITE, through his attorney Paul Thomas Layton, of Layton Law Firm, PLLC as and for his complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under Article 1, Section 6 of the Constitution of the State of New York, the laws of the State of New York, and the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983.

2. Plaintiff Reginald White's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally arrested and commenced prosecution against the plaintiff. By reason of defendants' actions, plaintiff was deprived of his constitutional, statutory and common law rights.

3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

JURISDICTION AND VENUE

4. This action is brought pursuant the laws of the State of New York including the common law and Article I, Section 12 of the Constitution of the State of New York and pursuant to 42

U.S.C. §§ 1983 and 1988 for violations of plaintiff's rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

5. Pursuant to New York State General Municipal Law § 50-e, plaintiff Mr. White filed a timely Notice of Claim on September 18, 2019.

6. Plaintiff filed his Notice of Claim by delivering copies of the notices to the persons designated by law as a person to whom such claims may be served.

7. The Notice of Claim was in writing, sworn to, and contained the name and address of Plaintiff.

8. The Notice of Claim set out the nature of the claim, the time when the claim and the place where and manner which the claim arose, and the damages and injuries claimed to have been sustained by Plaintiff.

9. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

10. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because Mr. White's claims arose in the County of New York.

11. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

12. Plaintiff, Mr. White, is and was at all times relevant to this action a resident of Bronx County in the State of New York.

13. Defendant the City of New York ("City"), is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the

employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

14. New York City Police Department (“NYPD”) Officer (“P.O.”) Micheal Guglielmi (“Guglielmi”), Shield No. 16393, and P.O. John Does 1-10; Sergeants and Captains (referred to collectively as the “individual defendants”) are and were at all times relevant herein, officers, employees and agents of the NYPD.

15. The individual defendants are being sued herein in their individual capacities under federal law.

16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

17. The true names and shield numbers of defendants John Does 1 – 10 and or NYPD Sergeants, Detectives and Captain John Doe and Mary Roe are not currently known to the plaintiff.¹ However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in this action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants

¹ By identifying said defendants as “John Doe” plaintiff is making no representations as to the gender of said defendants.

become known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in this action.

18. The individual defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.

19. At all relevant times, the individual defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

Facts Related to Mr. White

20. Plaintiff Mr. White was arrested by the individual defendants on August 31, 2019, in the vicinity of the southwest corner of Clinton Street and Broome Street in the County and State of New York between 3:00 and 4:00 am.

21. At the above date and time, Police Officer Guglielmi, Shield 16393 and individual defendant officers were detaining 3 or 4 men in the vicinity of the southwest corner of Clinton Street and Broome Street in Manhattan when the plaintiff, GREGORY WHITE arrived at the location and was ordered to stop.

22. Approximately 40 police officers arrived at the location; some of the officers were in plain clothes, some were in uniform and some appeared to be NYPD Detectives.

23. Plaintiff was stopped by the individual defendants without reasonable suspicion.

24. Plaintiff was ordered to provide his identification to one of the individual defendants.

25. The plaintiff and the 3 or 4 other detained individuals were ordered to remain at the location while a civilian, who had been robbed, was questioned about the participation of the 5 men, including plaintiff, in the robbery.

26. The civilian did not identify the plaintiff as one of the perpetrators.
27. Following the failure of the civilian to identify the plaintiff as one of the perpetrators, a police officer returned the plaintiff's identification and told him it was ok to leave; however another officer intervened and said "No; take them all," or similar words.
28. During the time that Mr. White was at the location an officer kicked the plaintiff in his left knee causing him pain.
29. Following his detention and arrest, the plaintiff was taken to the 07th Precinct for initial processing and then taken to Central Booking; he was then arraigned under Docket CR-028161-19NY at the Criminal Court of the City of New York at 100 Centre Street, New York, New York.
30. Defendant Police Officer Guglielmi, Shield 16393 provided false information to the prosecution in support of the criminal charges which were brought against the plaintiff Gregory White including falsely claiming that he was told by the civilian complainant that the plaintiff was among the group that surrounded him; that the plaintiff told the civilian "in substance: It is not going to be good for you. Forget about it."
31. The false statements were relied upon by the prosecution in making their request for \$20,000 bail.
32. The false statements and the false charges were a reason that the plaintiff was held in custody on a bail of \$7,000 insurance bond or \$2,000 cash.
33. Plaintiff remained incarcerated on the false charges until September 5, 2019 when the charges against him were dismissed.
34. One or more of the individual defendants knowingly forwarded false information to employees of the New York County District Attorney's Office.

Facts Related to the Civil Rights Violations Caused by the City of New York's Policies

35. The City of New York has a practice of illegally stopping individuals in

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983**

36. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

37. Defendants, under color of state law, subjected the plaintiff to the foregoing acts and omissions, thereby depriving plaintiff of his rights, privileges and immunities secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights:

- a. freedom from unreasonable seizure of his person, including the excessive use of force;
- b. freedom from malicious prosecution by police, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in plaintiff's favor;
- c. freedom from being stopped and investigated without the necessary level of suspicion;
- d. freedom of the enjoyment of equal protection, privileges and immunities under the laws;
- e. freedom from having defendants fabricate evidence; and
- f. defendants failed to intervene and stop the afore enumerated constitutional violations.

38. Defendants' deprivation of plaintiff's constitutional rights resulted in the injuries and damages set forth above.

**SECOND CLAIM
MONELL CLAIM AGAINST DEFENDANT CITY**

39. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

40. All of the acts and omissions by the individual defendants described above were carried out pursuant to overlapping policies and practices of the City which were in existence at the time

of the conduct alleged herein and were engaged in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant City and its agency, the NYPD.

41. Defendant City and the NYPD, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.

42. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.

43. Defendant City knew or should have known that the acts alleged herein would deprive the plaintiff of his rights.

44. The aforementioned City policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, the known illegal manner in which the City conducts its policing of by failing to have an adequate basis for stopping individuals.

45. As such, the City's policies, practices, omissions and failures described above were the moving forces behind the violations of plaintiff's constitutional rights.

THIRD CLAIM
RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK
FOR VIOLATIONS OF THE LAWS OF THE STATE OF NEW YORK

46. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

47. The conduct of the individual defendants alleged herein, occurred while he or she was on duty and in uniform, and/or in and during the course and scope of his or his duties and functions

as NYPD officers, and/or while he or she was acting as an agent and employee of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to plaintiff pursuant to the state common law doctrine of *respondeat superior*.

48. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FOURTH CLAIM
ASSAULT AND BATTERY
UNDER THE LAWS OF THE STATE OF NEW YORK**

49. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

50. By the actions described above, defendants did inflict assault and battery upon plaintiff. The acts and conduct of defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

51. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FIFTH CLAIM
INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
UNDER THE LAWS OF THE STATE OF NEW YORK**

52. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

53. By the actions described above, defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and

conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

54. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, humiliation, costs and expenses, and was otherwise damaged and injured.

**SIXTH CLAIM
NEGLIGENCE
UNDER THE LAWS OF THE STATE OF NEW YORK**

55. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

56. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

57. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**SEVENTH CLAIM
NEGLIGENT HIRING, SCREENING, RETENTION,
SUPERVISION, AND TRAINING
UNDER THE LAWS OF THE STATE OF NEW YORK**

58. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

59. Defendant City negligently hired, screened, retained, supervised, and trained defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and

damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

60. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**EIGHTH CLAIM
FALSE ARREST
UNDER THE LAWS OF THE STATE OF NEW YORK**

61. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

62. Plaintiff was arrested without a warrant.

63. By the actions described above, by the lack of probable cause, by the false allegations against the plaintiff in the accusatory instrument, the individual defendants falsely arrested plaintiff, even though there was no probable cause for an arrest or prosecution in this matter.

64. The criminal case against plaintiff was terminated in his favor in that all charges were dismissed in their entirety.

65. The plaintiff was injured.

66. The amount of damages exceeds the amount of damages within the jurisdiction of all lower courts.

**NINTH CLAIM
MALICIOUS PROSECUTION
UNDER THE LAWS OF THE STATE OF NEW YORK**

67. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

68. By the actions described above, by the false allegations against the plaintiff in the accusatory instrument, the individual defendants caused a criminal proceeding to be initiated against plaintiff, even though there was no probable cause for an arrest or prosecution in this matter. The individual defendants maliciously caused this prosecution to be initiated in that they knew there was no probable cause for such prosecution and that they further wished to harm and punish plaintiff for illegitimate reasons. The criminal case against plaintiff was terminated in his favor in that all charges were dismissed in their entirety.

69. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

70. The plaintiff was injured.

71. The amount of damages exceeds the amount of damages within the jurisdiction of all lower courts.

JURY DEMAND

72. Plaintiff demands a trial by jury in this action on each and every one of his damage claims.

WHEREFORE, plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

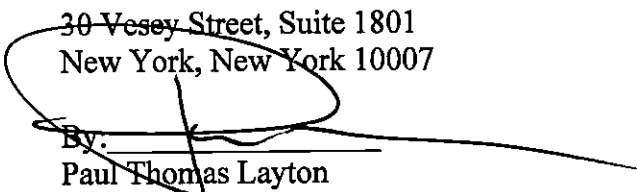
- a. That he be compensated for violation of his constitutional rights, pain, suffering, mental anguish and humiliation; and
- b. That he be awarded punitive damages against the individual defendants; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and

d. For such other further and different relief as to the Court may seem just and proper.

Dated: November 7, 2020
New York, New York

Respectfully submitted,

Layton Law Firm, PLLC
Office & P.O. Address
30 Vesey Street, Suite 1801
New York, New York 10007

By: 
Paul Thomas Layton
t: 917-923-4287
e: laytonlaw10007@gmail.com

ATTORNEY'S VERIFICATION

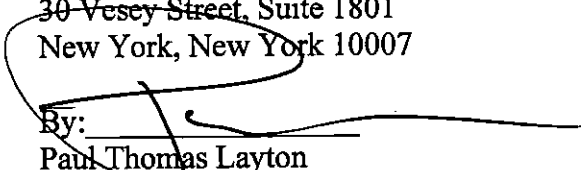
I, Paul Thomas Layton, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am an attorney of record for the Plaintiff, Mr. Gregory White.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: November 7, 2020
New York, New York

Respectfully submitted,

Layton Law Firm, PLLC
Office & P.O. Address
30 Vesey Street, Suite 1801
New York, New York 10007

By: 
Paul Thomas Layton
t: 917-923-4287
e: laytonlaw10007@gmail.com

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

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Defendants

-----X

SUMMONS AND VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130.1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: New York, New York
November 7, 2020



LAYTON LAW FIRM, PLLC
by Paul Thomas Layton, Esq.

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